

Petition for Sanctions is granted in the amount of \$1,750.

Petitioner to file Order.

12. 9:00 AM CASE NUMBER: RS24-0953

CASE NAME: BG ASSET MANAGEMENT, INC. VS. LISA DAVIDSON

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT

FILED BY: DAVIDSON, LISA M.

TENTATIVE RULING:

Background

Cross Complainant Lisa Davidson filed this Motion for Leave to Amend the Cross Complaint on 12/24/25, and timely served Cross Defendant.

In the proposed Amended Cross Complaint, Cross Complainant alleges damages of well over \$100,000.

The Motion is unopposed.

Analysis

A cross-complainant can request leave of the court to file a new cause of action when the new cause of action arises from the same transaction that gave rise to the cause of action alleged in the original complaint. CCP 426.50, CCP 426.10(c). The failure to file the new cause of action in the original complaint must be for reasons such as inadvertence, or other causes. *Id.*

Trial courts must generally grant leave to amend unless the opposing party would be prejudiced by the amendment. See CCP 426.50, and *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1378.

If the statute of limitations has expired before the amended complaint is filed, the amended complaint is time-barred unless it relates back to a timely filed original complaint. *Curtis Engineering Corp. v. Superior Court* (2017) 16 CA5th 542, 548. An amendment alleging a new theory of liability against the defendant relates back to the original complaint as long as the new cause of action is based on the same general set of facts previously alleged. *Id.*

In the instant matter, the factual transaction alleged in the proposed Amended Cross Complaint is virtually identical to that in the original Cross Complaint. All the causes of action, as well as the addition of new Cross Defendants, in both the Original and proposed Amended Complaints, stem from the lease agreement between Cross-

Complainant and Defendants and the period within. More specifically, both complaints rely heavily on: the circumstances of habitability; the Cross Defendants' improper attempts to levy fees and engage in the eviction process; the retaliatory efforts by Cross-Defendants against Cross-Complainant; and the damages sought by Cross-Complainant as a result of the Cross-Defendants' behavior.

It does not appear that a new factual transaction is being alleged.

Moreover, the Amended Cross Complainant alleges more detail to corroborate the causes of action listed in the Original Cross Complaint.

What's more, the Motion to Amend the Cross Complaint was filed approximately 5 months after the Original, it was filed mere weeks after the attorney for Cross Complainant entered the case. Cross Complainant was self-represented prior to that, which is significant, because it suggests Cross Complainant failed to file a more robust Cross Complaint on the first attempt because of her own, understandable, ignorance of the legal process.

Finally, no trial date has been set.

On the whole, it does not appear that Cross Defendants will suffer any prejudice with the Amended Cross Complaint, and that there are no statute of limitations issues because the Amended Cross Complaint relates back to the Original.

Disposition

Cross Complainant's Motion for Leave to file Amended Cross Complaint is granted.

Cross Complainant to file Amended Cross Complaint within 10 calendar days of this Order.

Cross Complainant to file this Order granting Motion.

Parties are ordered to meet and confer prior to the filing of the Amended Cross Complaint to discuss the issue of whether this should be reclassified as an unlimited civil matter.

Parties are on notice that, should the case remain as a limited civil matter, this court will address, on its own, whether to reclassify the matter at the CMC on 5/27/26.